



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-23-3 – Amending UDC Section 6.2.4, Table 6-2
Date: November 27, 2023

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/27/2023
- Public Services Committee 12/05/2023
- Second reading 12/11/2023
- Public Services Committee 12/19/2023
- Third and final reading 12/21/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their November 20, 2023, meeting and **voted 4-0** to recommend the Governing Body approve the proposed text amendment.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 6.2.4 OF THE UNIFIED DEVELOPMENT CODE (UDC), AMENDING TABLE 6-2, REQUIRED AUTOMOBILE PARKING FOR MULTI-FAMILY DEVELOPMENTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on November 20, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Table 6-2, Required Automobile Parking, of Article 6, Design Regulations, Parking, Lot Access and Circulation, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended changing parking spaces required for "Residential: all other" to read as follows:

- 0.5 space per unit for studio or one bedroom
- 1 space per unit for age restricted senior housing
- 1.5 spaces per unit for all other unit types

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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PLANNING COMMISSION

NOVEMBER 20, 2023

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 5.1.5.d and 6.2.4.a, Table 6-2.

CASE NUMBER: PLTA-23-4

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Motion 1:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Section 5.1.5.d as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

Motion 2:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Section 6.2.4.a, Table 6-2 as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are two of many small amendments that will be coming forward as staff looks at Article 5 and works on changes based on the Affordable Housing Task Force recommendations. The first proposed text amendment is to remove the density requirement for multi-family lots. Currently all multi-family lots have a density requirement of 1 dwelling / 1,600 square feet and 1 dwelling / 1,000 square feet, if over 3 stories. By removing the density requirement, it would allow for more residential units to be provided as long as all other UDC requirements are met. There is a requirement that any

building over 3 stories must request a conditional use and can only go up to 5 stories. Removing the density requirement would not change this requirement. Other factors that would still limit the number of units is setbacks, percentage of landscaping required, impervious area, and parking.

The second proposed amendment is to make some changes to parking requirements for multi-family development. One of the changes proposed is to allow 0.5-spaces for studio or one-bedroom units. This number is proposed from a study called Breaking the Code: Aligning Zoning Code with Housing Goals which is a toolkit created for Wyoming Communities. By adding this parking requirement to the code, it would provide an incentive for studio and one bedroom apartments which are missing within the community.

Staff also proposes adding in a parking requirement for age restricted senior housing that reduces the parking down to 1 space per unit rather than the 1.5 spaces per unit under current requirements. Staff have been provided with studies by applicants justifying the reduction down to 1 space per unit and several senior housing developments through the community have developed with 1 space per unit and functioning just fine at this reduction. With these additions, the required parking for all other types of multi-family and all other number of units will still be required at 1.5 spaces.

PROPOSED AMENDMENTS:

The proposed amendments are to remove the density requirement from the MD1, MD2 and MD3 Lot Types. See the attached exhibit for the proposed amendments.

The second proposed amendment is to modify the parking requirements for multi-family developments to the following:

0.5 space per unit for studio or one-bedroom

1 space per unit for age restricted senior housing

1.5 spaces per unit for all other unit types

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

The proposed amendment is in compliance with multiple goals and policies such as: Policy 1.1.B Flexibility to respond to market demands, 1.4.A Infill Opportunities, 2.5.A Community Housing needs met, Policy 2.3.A Mix of Housing Types, and 2.5.B Workforce Housing throughout the community, to name a few. The proposed text amendments incentivize the development of more units throughout the community and hopefully provide incentive the development of more studio and one-bedroom apartments.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
- (ii) Establish setback building lines.

Assessment: This amendment proposes modifying the Unified Development Code to remove the density requirement for multi-family development and change the parking requirements for multi-family development.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

The proposed amendments will reduce the number of barriers to building multi-family developments and hopefully incentivize the construction of more studio and one-bedroom apartments which are missing within the community.

CONCLUSION:

Staff concludes that both proposed text amendments meet the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Section 5.1.5.d as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

Staff recommends **approval** of text amendments to the Unified Development Code Section 6.2.4.a, Table 6-2 as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

ADDITIONAL DOCUMENTS:

Housing Studies:

[Breaking the Code: Aligning Zoning Code with Housing Goals](#)
[2023 Housing Study](#)

Attachments:

Exhibit A – Removal of the density requirement

Exhibit B – Parking requirement changes

5.1 GENERAL PROVISIONS

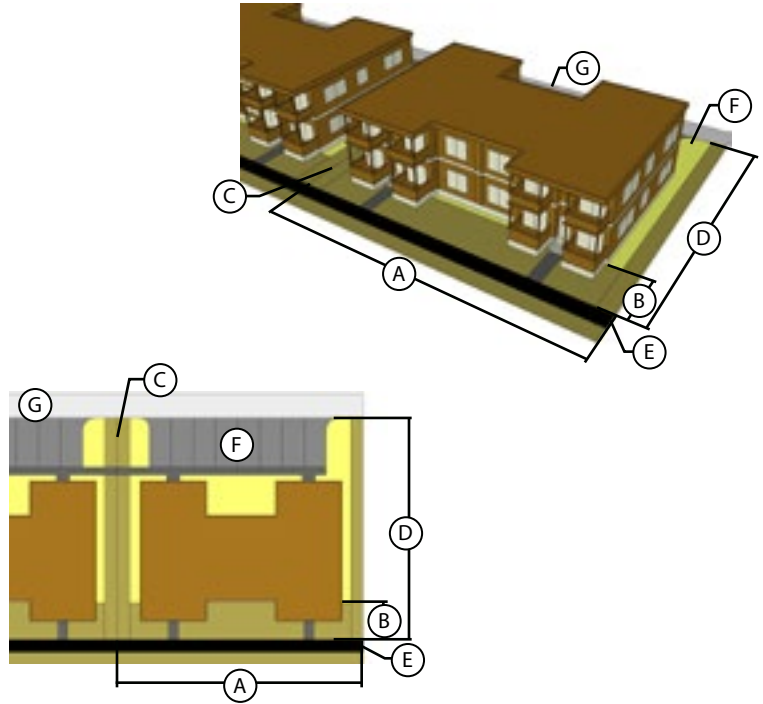
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE MD2: MULTI-DWELLING BUILDING / STANDARD LOT

Lot Area		9,000 – 19,999 square feet
Lot Frontage		80' – 150'
Setbacks: Principal Building (min.)	Front	10' – 20'
	Side	5' 15' on street side corner lots
	Rear	15' 5' if alley loaded
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	5' 15' on street side corner lots
	Rear	2' 5' if alley loaded
Density (max.)		1 dwelling / 1,600 square feet 1 dwelling / 1,000 square feet, if over 3 stories
Total Lot Coverage (max.)		80%
Building Height	Principal	2 to 3 stories Up to 5 stories with conditional review
	Accessory	Up to 2 stories
Zoning Districts	Permitted: HR, NR-3, NR-2 Conditional: MR	



- | | | |
|-----------------------|------------------------|-----------|
| (A) Frontage | (D) Depth | (G) Alley |
| (B) Front Setback | (E) Public Sidewalk | |
| (C) Property Boundary | (F) Buildable Lot Area | |

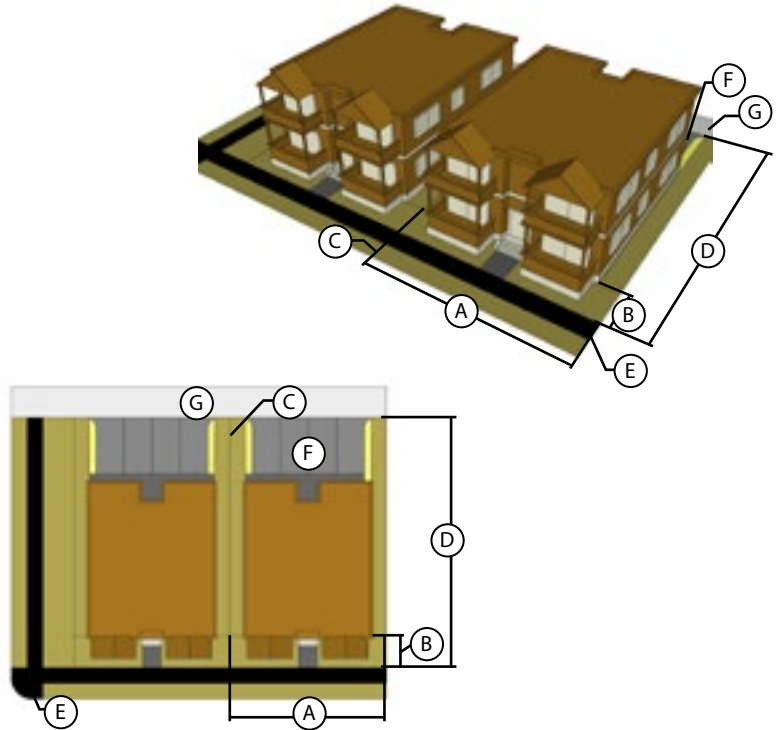
ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TYPE MD3: MULTI-DWELLING BUILDING / SMALL LOT

Lot Area		4,000 - 8,999 square feet
Lot Frontage		50' - 80'
Setbacks: Principal Building (min.)	Front	10' - 20'
	Side	5' 15' on street side corner lots
	Rear	15' 5' if alley loaded
Setbacks: Accessory Building (min.)	Front	10' behind front building line
	Side	5' 15' on street side corner lots
	Rear	2' 5' if alley loaded
Density (max.)		1 dwelling / 1,600 square feet 1 dwelling / 1,000 square feet, if over 3 stories
Total Lot Coverage (max.)		80%
Building Height	Principal	2 to 3 stories Up to 5 stories with conditional review
	Accessory	Up to 2 stories
Zoning Districts	Permitted: HR, NR-2, NR-3 Conditional: MR	



(A) Frontage	(D) Depth	(G) Alley
(B) Front Setback	(E) Public Sidewalk	
(C) Property Boundary	(F) Buildable Lot Area	

- e. **Residential Zoning Districts and Lot and Building Types.** Table 5-2 establishes the lot and building types allowed for each residential zoning district.

Exhibit B

TABLE 6-2: REQUIRED AUTOMOBILE PARKING

Use	Parking Spaces
Assembly (auditorium, stadium, church, etc.)	1 space per each 5 seats (maximum capacity)
Bed and breakfasts, boardinghouse and/or lodging house	1 space per each 2 bedrooms
Hospitals	2 spaces per each bed
Hotels and motels	1 space for each rental unit plus 1 space for each 2 employees at maximum employment on a single shift Plus 1 space for each company vehicle regularly parked on the premises Accessory uses (dining, banquette) shall satisfy their parking requirement separately according to this table.
Industrial and Warehousing	1 space for each two employees at maximum employment on a single shift Plus 1 space for each company vehicle regularly parked on the premises
Nursing homes and assisted living facilities	1 space for each 5 beds for shared living facilities 1 space for each 3 independent living units Plus 1 space for each employee at maximum employment on a single shift Plus 1 visitor space for every 10 beds or 5 independent living units
General offices	< 50,000 square feet: 1 space per 300 square feet ≥ 50,000 square feet: 1 space per 400 square feet
Medical offices	1 space per 200 square feet
Residential: Detached, Semi-Attached, and Attached Dwellings	2 spaces per dwelling unit
Residential: all others	0.5 space per unit for studio or one bedroom 1 space per unit for age restricted senior housing 1.5 spaces per unit for all other unit types
Retail - generally	< 25,000 square feet: 5 spaces per 1,000 square feet 25,000 to 400,000 square feet: 4 spaces per 1,000 square feet 400,000 to 600,000 square feet: 4.5 spaces per 1,000 square feet > 600,000 square feet: 5 spaces per 1,000 square feet
Retail – Large product sales (automobiles, RVs, boats, farm implements, appliances, tree nurseries and garden centers, etc.)	1 space per 20,000 square feet
Restaurants	< 2,000 square feet: 5 spaces per 1,000 square feet 2,001 - 5,000 square feet: 10 spaces per 1,000 square feet > 5,000 square feet: 20 spaces per 1,000 square feet Plus 1 space per each 2 employees at maximum employment on a single shift.
Schools	K through 9: 1 space for each 15 students at maximum capacity 10 through 12: 1 space for each 4 students at maximum capacity College and technical schools: 1 space for each 2 students at maximum capacity